



Indian Renewable Energy Development Agency Limited
(A Navratna Government Company)
ISO 9001:2015, 27001:2013 Certified

REQUEST FOR PROPOSAL (RFP)

For OPEN TENDER through GEM for

ENGAGEMENT OF VALUATION AGENCY

(Securities or Financial Assets)

(Only through E-bidding mode)

INVITATION TO BID

Reference Number: RFP for engagement of Valuation Agency

Indian Renewable Energy Development Agency Limited (IREDA)

(A Navratna Government Company)

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Disclaimer

Subject to any law to the contrary, and to the maximum extent permitted by law, IREDA and its directors, officers, employees, contractors, representatives, agents, and advisors disclaim all liability from any loss, claim, expense (including, without limitation, any legal fees, costs, charges, demands, actions, liabilities, expenses or disbursements incurred therein or incidental thereto) or damage, (whether foreseeable or not) (“Losses”) suffered by any person acting on or refraining from acting because of any presumptions or information (whether oral or written and whether express or implied), including forecasts, statements, estimates, or projections contained in this RFP document or conduct ancillary to it whether or not the losses arises in connection with any ignorance, negligence, inattention, casualness, disregard, omission, default, lack of care, immature information, falsification or misrepresentation on the part of the IREDA or any of its directors, officers, employees, contractors, representatives, agents, or advisors.

The information contained in this Request for Proposal (RFP) document or information provided subsequently to Bidder or applicants whether verbally or in documentary form by or on behalf of Indian Renewable Energy Development Agency Limited (IREDA), is subject to the terms and conditions set out in RFP document.

This RFP document is not an agreement and is not an offer or invitation by IREDA to any parties other than the applicants who are qualified to submit the Bids (Bidders). IREDA makes no representation or warranty and shall incur no liability under any law, statute, rules or regulations as to the accuracy, reliability or completeness of this RFP document. IREDA may in its absolute discretion, but without being under any obligation to do so, update, amend or supplement the information in this RFP document.

IREDA also accepts no liability of any nature whether resulting from negligence or otherwise, howsoever caused arising from reliance of any Bidder upon the statements contained in this RFP.

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II. Introduction

NOTICE INVITING TENDERS (NIT) for ENGAGEMENT OF VALUATION AGENCY FOR MTM VALUATION OF DERIVATIVE DEALS (Securities or Financial Assets)

1. Indian Renewable Energy Development Agency Limited (IREDA), a Navaratna Government Company under the administrative control of **Ministry of New and Renewable Energy (MNRE)**, invites online bids on two bid system for Engagement of Valuation Agency for Marked to Market (MTM) Valuation of the foreign currency portfolio of the company.

2. Request for Proposal:

IREDA has foreign currency loans including ECB's and from various Bilateral and Multilateral agencies. The funds drawn under the foreign currency are hedged for risk mitigation as per the foreign currency and derivative risk management policy of the company. In order to mitigate the currency and interest rate risk, as per the Board approved Foreign Currency Derivative Risk Management Policy of the company, various hedging instruments have been taken for various loans such as – principal only swap, currency and interest rate swap, forwards, cross currency swaps, option and structured derivative products etc. IREDA has foreign currency loans in three currencies at present – USD, EURO and JPY. The company may engage in both structured and generic products as permitted by the RBI in future.

Accordingly, IREDA desires to engage Valuation Agency for MTM Valuation as per the Scope of Work mentioned on Page 7 of the RFP. IREDA invites bids on the GeM Portal from interested firm(s) of valuers (Individuals / Partnership firms / LLP / Companies) herein after referred as bidder, which are in compliance with the provisions of Companies (Registered Valuers and Valuation) Rules, 2017 ("Rules 2017") made under provisions of Section 247 of Companies Act 2013.

3. Tender documents may be downloaded from IREDA website, www.ireda.in (for reference only) or from GEM website <https://gem.gov.in/> as per the schedule given below:

No.	Description	Detailed information
1	Name of the Project	Engagement of Valuation Agency for MTM Valuation (Securities or Financial Assets)
2	Email address for queries	Interested bidders in case of queries may kindly send their queries through email on the following email Id: manjushashukla@ireda.in gauravvarshney@ireda.in ramasamy@ireda.in
3	EMD Fee	Nil
4	Last date and time for bid submission	T+14 15:00
5	Date of opening of Technical Bids	T+15
6	Contract Period	2 Years

7	MSE Exemption for Years of Experience and Turnover in Pre-Qualification Criteria	Yes
8	Startup Exemption for Years of Experience and Turnover in Pre-Qualification Criteria	Yes
9	Type of Bid	Single Stage Two envelopes System with pre-qualification.
10	Evaluation Method	Least Cost Selection (LCS) and scoring 70 marks in Evaluation of Technical Bids.
11	Make In India Compliance	Yes
12	Bid Validity Period	Upto 180 days from the date of opening of Technical Bid
13	Place of submission of Bids	Completed bids to be uploaded on GeM Portal
14	Name and address for communication	Deputy General Manager (F&A) Indian Renewable Energy Development Agency Limited 7 th Floor, Plate-B, Block-2, NBCC Office Complex, East Kidwai Nagar, New Delhi – 110024

4. Bids shall be submitted online only at GEM website: www.gem.gov.in.
 - a) Tenderer/Bidder are advised to follow the instructions provided in the ‘**Instructions to the Contractors/Tenderer for the e-submission of the bids online through the GeM Portal for e-Procurement at**’ GEMs website: www.gem.gov.in’.
 - b) For further assistance w.r.t. GeM Portal and uploading of the bids/ technical issues if any, email your queries to helpdesk-gem@gov.in or call **1800-419-3436**.
5. Not more than one tender shall be submitted by one tenderer/bidder.
6. Tenderer who has downloaded the tender from the IREDA website and GEM website: www.gem.gov.in, **shall not tamper/modify the tender in any manner. In case if the same is found to be tempered/modified in any manner, tender will be completely rejected, and tenderer is liable to be banned from doing any business with IREDA.**
7. Prospective bidders are advised to visit IREDA’s website and GEM website: www.gem.gov.in on a regular basis prior to closing date of submission of tender for any corrigendum/addendum/amendment.
8. The issuance of this RFP does not establish an obligation for IREDA to necessarily choose a Bidder or grant the contract to the Selected Bidder, as appropriate for the Project. IREDA retains the prerogative to decline any or all of the Bids or Bidders without the need to provide any justification whatsoever.
9. IREDA may at its discretion abandon this RFP process any time before Notification of Award/ Work Order. No fee becomes payable in such case.
10. The Bidder is expected to examine all instructions, forms, terms, and specifications in this RFP. Failure to furnish all information required under this RFP or to submit a Bid not substantially responsive to this RFP in all respect will be at the Bidders risk and may result in rejection of the bid.
11. **Conflict of Interest:** Consultant / Firm are not allowed to participate in the bidding process who are presently engaged with IREDA for assignment(s) that, by its nature may be in conflict with this assignment of Consultancy / Firm.
12. Bids will be unveiled in accordance with the date and time specified in the schedule.

13. Any pre-bid query regarding RFP/bidding documents shall be submitted to IREDA in writing through email at the email address mentioned in the above table within a maximum of 7 days from the date of publishing of this tender. No query will be entertained over phone call or after 7 days from the date of publishing of this tender.

Table-A

No.	RFP Reference	Page no.	Clause no.	Description in RFP	Query/Clarification sought	Remarks

14. The Bid shall be deemed to have been submitted after careful study and examination of this RFP document. The Bid should be precise, complete and in the prescribed format as per the requirement of this RFP document. Technically qualified bidders shall be intimated separately about the details of financial bid opening.
15. Failure to furnish all information or submission of a bid not responsive to this RFP will be at the bidder's risk and may result in rejection of the bid. The Bidder/ Consultant is requested to carefully examine the RFP document, and if there appears to be any ambiguity, contradictions, inconsistency, gap and/or discrepancy, should seek necessary clarifications by e-mail as mentioned in the table above.
16. The scope of work is indivisible and shall be awarded to the successful bidder.

17. Deliverables and Delivery Schedule

The Bidder is required to deliver as per scope of work (in the form of MS Word document, Power Point presentations, PDF, Excel model and/or other formats as required) and as per the timelines mentioned below. The bidder must ensure that the deliverables in totality achieve the overall objective of the exercise.

The deliverable shall be delivered within **4 days** of the **services sought** through email by IREDA upon submission of the prerequisite information to the bidder needed for performance of the duty.

Any modification thereto shall be mutually agreed formally communicated by the Company.

18. Merger and acquisition (M&A)

- "If any merger transaction has taken place i.e. A and B have been merged to form C, and the earlier entities i.e. A & B cease to exist then, the bidding entity i.e. C can use the credentials of the entities which have been merged, for the purpose of evaluation of PQR & Technical criteria."
- If A acquires other entity such as B, and B ceases to exist, then A can use the credentials of B for the purpose of evaluation of PQR & Technical criteria.
- Parent company (bidder) can use the credentials of its subsidiary for the purpose of technical experience.
- In case of demerger of entity B from A owing to Corporate restructuring, then entity B can use the credentials of original/ parent entity to the extent of demerger scheme as approved by the competent authority and subject to verification (based on the merit and circumstances of the cases like type of procurement, nature of de-merger, number of eligible bidders available etc) to satisfy the eligibility criteria in the tender for 5 years from the date of incorporation of the new entity. (However, same experience cannot be used by the original entity).

19. *The bidder's claiming to be MSME and/or Start Ups etc., the relaxations and exemptions as per Government of India notifications/ instructions/guidelines w.r.t. the requirements of turnover & number of years of experience are allowed subject to production of requisite documents/proofs etc.*

III. Scope of Work

The Scope of Work for the Valuer is as follows: -

1. Provide the mark to market (MTM) valuation of all the derivative transactions (both structured and generic derivative products as permitted by RBI) undertaken by IREDA. This can be done in a pre-defined format as agreed by IREDA and/ or statutory auditors, on a quarterly / half yearly basis/ yearly basis (as required), as well as at any point of time for any specific transactions or a portfolio of transactions as per the requirement of the company/ regulator etc and provide independent MTM valuation certification on balance sheet dates for reporting purposes under IND AS and Hedge Accounting.
2. To answer to the queries of the company /auditors/ regulator / other statutory authorities etc. in relation to the valuations arrived at as the Fair Valuation of derivative provided. The same shall be reviewed / audited by the Internal / Statutory / C&AG Auditors of the company or / RBI Inspection Team for the purpose of Audit of Financial Statements.
3. To provide detailed inputs / methodologies / assumptions used for arriving at the MTM valuation and analysis of IREDA's derivatives portfolio including screenshots of rates, graphs and any other relevant information/
4. Any other work as may be required to be carried out in relation to the valuation of the said derivatives.

The scope of work is indicative only and IREDA reserves the right to add/change the scope for the service, if IREDA finds it necessary, during the engagement period.

The Valuer shall be required to submit duly signed report on their **letterhead within 4 days of the end of the period for which valuation report is requested by IREDA / or such other time as may be intimated by IREDA to the Valuer.**

IV. Payment Terms

Payment Terms

1. IREDA shall make full payment to the selected bidder against the invoice submitted by them within 30 days after receiving the original invoice post successful completion of the work and invoice being in line with the agreement entered.
2. Taxes as applicable should be indicated separately while raising the invoice for payment of consultancy fee .
3. The successful bidder will not be entitled to charge IREDA for any other fees, charges, or expenses (including travel and accommodation, document reproduction, transportation and courier charges, and telecommunications charges, etc.) in addition to the consultancy fees.

Taxes and Duties

1. All taxes deductible at source, if any, at the time of release of payments, shall be deducted at source as per then prevailing rates while making any payment.
2. The benefits realized by the Bidder due to lower rates of taxes, duties, charges, and levies shall be passed on by the Bidder to IREDA. Further, in case there is any increase in taxes, duties, charges, and levies, IREDA shall compensate the Bidder the amount of such increase in taxes, duties, charges, and levies, to be lawfully paid and borne by the Bidder against proof of payment and IREDA has the right to demand documentary evidence of such variation.
3. Bidders will be liable to pay taxes applicable as per law.

V. Engagement Tenure

1. The initial engagement shall be done for a period of **02 years**, extendable by one (1) year, subject to satisfactory performance, requirement and mutual agreement, on same rates and terms and conditions.
2. IREDA reserves its right to de-list the name of the consultant at any stage, if found unsatisfactory or does not comply with the IREDA's requirement.
3. IREDA reserves the right for renewal/extension of Engagement / contract.

VI. Pre-Qualification Criteria (Eligibility Criteria)

Eligibility Criteria

The invitation to bid is open to all Bidders who fully meet the following minimum qualifying requirements and provide / submit the satisfactory documentary evidence in support, failing which their bid may be rejected.

The eligibility criteria as given below: -

S. No.	Criteria	Documents to be provided	YES/NO
1	- The Bidder should be an Indian Citizen / Entity. - The Bidder has not been removed / dismissed from service (previous employment) earlier. - The Bidder must not have been blacklisted by any Government Department / Public Sector Undertaking / Banks / Autonomous Bodies / RBI / Statutory Bodies in India at the time of submission of bid. - The Bidder has not been convicted of any offence and sentenced to a term of imprisonment. - The Bidder has not been found guilty of misconduct in professional capacity. No disciplinary proceeding is pending against the valuer. - The Bidder is not an undischarged insolvent. - The Bidder has not been convicted of an offence connected with any proceeding under the Income Tax Act 1961, Wealth Tax Act 1957 or Gift Tax Act 1958. - The Bidder possesses a PAN Card number / GST number, as applicable. - The Bidder is not engaged in any other employment with any other entity (in case of individual bidder).	Undertaking from the authorized official as per Annexure-A. (Board resolution (BR)/ undertaking from a separate partner to be provided for proof of authorized signatory. In case name of authorised signatory does not appear in the BR, then power of attorney from the authorised official in favour of the authorized signatory).	
2	The applicant shall Be an Individual / Proprietorship / Company/ LLP / Partnership Firm registered under the Indian Companies Act, 1956 or 2013 /the LLP Act, 2008 and who have their registered offices in India.	- Copy of Certificate of incorporation / Partnership Deed / Certification of Registration etc. - For Individuals – First Engagement Letter / agreement of Valuation Work.	

3	The Bidder should be a - Registered valuer / registered valuer entity registered with the Authority (IBBI) to act as a valuer in respect of ‘Securities or Financial Assets’ in accordance with the Companies (Registered Valuers and Valuation) Rules, 2017 (the Rules). - Member of any RVO <u>as on date of submission of bid.</u>	- Duly Certified copy of Certificate of registration (indicating Valuer Registration Number) from IBBI. - Duly <i>Certified copy of Certificate of membership of RVO</i> (indicating Membership Number). - Duly <i>Certified copy of Certificate of practice from RVO</i> (indicating Membership Number). - Duly filled Annexure D indicating the details mentioned above. Above certificates should be valid as on date of submission of the bid.	
4	The bidder must have at least 7 years of experience of providing valuation services for valuation of “Securities or Financial Assets”. - During the last 7 years (from 01.04.2019 onwards), the Bidder must have completed or substantially completed at least seven assignments related to valuation of “Securities or Financial Assets”. - Out of above at least two (2) assignments related to valuation of Derivatives as per Scope of work should be completed or substantially completed. Note: - Substantially completed means - where payments due must have been received. - Assignments: Engagement Letter / agreement <i>In case an engagement letter is for a period more than 1 year, it will be counted as 1 (one) engagement for the purpose of evaluation.</i>	- Copy of Engagement Letter / agreement & completion certificates/CA certified receipt of payments to be provided - Certified by authorised signatory - Duly filled Annexure I indicating the details mentioned above.	
5	Bidder Shall have average annual financial turnover of Rs. 3.5 lakhs in last three financial years.	- An undertaking from the authorized signatory as per Annexure F. - Self-Certified 3 years annual audited accounts or CA Certificate where the accounts are not audited. <i>(Average of the turnover of the last three fiscal years i.e. FY 2023-24, FY 2024-25,</i>	

		<i>and FY 2025-26 shall be considered for evaluation purposes).</i>	
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Signed and Scanned copies of documents should be provided and uploaded on GeM portal as evidence for meeting the eligibility criteria. The selected valuer would be required to sign the **non-disclosure agreement** as well as **integrity pact** with IREDA. Failure to sign the same would make their appointment null and void.

Bidders who will not meet the above criteria shall be summarily rejected and no technical evaluation will be made.

MSE Bidders

In respect of start-up and MSEs Prior Turn over and Prior Experience eligibility criteria be relaxed subject to meeting of quality and technical specifications ***as per notified Govt. guidelines***. Such bidders are requested to submit Startup Certificate / MSME Certificate.

VII. Bid Evaluation

Preliminary Examination of Bids

1. The evaluation process would consider whether the bidder has requisite prior experience and expertise to address IREDA's requirements and objectives.
2. IREDA will examine the bids to determine:
 - whether they are complete,
 - whether required information has been provided as underlined in the Bid document,
 - whether the documents have been properly signed, and
 - whether bids are generally in order.
3. Eligibility and compliance of all the forms and documents would be the next level of evaluation.
4. Only those Bids which comply with the **Eligibility Criteria** will be taken up for further technical evaluation.
5. To assist in the examination, evaluation and comparison of bids, IREDA may, at its discretion, ask any or all the Bidders for clarification and response from the bidders shall be in writing and no change in the price or substance of the Bid shall be sought, offered or permitted.
6. Written replies submitted in response to the clarifications sought by IREDA, if any, will be reviewed.
7. IREDA may interact with the Customer references submitted by Bidder, if required.

Evaluation of Technical Bids

Bidders, who meets the above eligibility criteria, their technical bids will be evaluated as per criteria given below. It may kindly be noted that the technical bid/ proposal should be submitted strictly in the format prescribed for necessary evaluation at our end.

A maximum of 100 marks will be allocated for the technical bid. The technical scoring of the proposals will be broadly based on the criteria as given below:

S. No.	Particular	Marking System		Max. Marks
1	Engagement as Valuers during 01-04-2019 to date of RFP , for valuation <i>of Derivatives as per Scope of work</i> to the following Entities - PSU / NBFCs (of assets size of > ₹ 1000 Cr) / Scheduled Commercial Banks / Listed Companies. Documents to be provided: Copy of engagement letter/ Agreement covering the scope of work for consideration of these points along with satisfactory completion of the work from the entity who has engaged. In case satisfactory completion certificate is not available then a certificate from practicing CA that the payment <i>which is due as per work order</i> has been received. Undertaking from the authorized signatory containing	04 Engagement	10	40
		05 – 06 Engagements	20	
		More than 06` Engagements	40	

	details of the engagement letters/ agreement as per Annexure J. <i>In case an Engagement Letter / agreement is for a period more than 1 year, it will be counted as 1 (one) engagement for the purpose of evaluation.</i>			
2	Total years of professional experience as specified in scope of work as on 31st March 2026, of the professional leading the assignment of IREDA should be at least 5 years. Documents to be provided: Undertaking from the authorized signatory containing details of the professional as per Annexure E.	5-7 years	10	30
		Over 7 – 9 years	20	
		Over 9 years	30	
3	Professionals other than team leader who will be engaged for the assignment of IREDA should be professionally qualified (CA / CWA / CS/ MBA (Finance) / PGDM (Finance)) and have average work experience as specified in scope of work of atleast 1 year. Documents to be provided: Undertaking from the authorized signatory containing details of the professionals as per Annexure F. <i>Evaluation method:</i> 1. <i>Average yrs. Of experience = Total years of relevant experience of all professionals / Number of persons</i> 2. <i>Maximum professionals (other than team leader) be 3.</i> <i>In case of decimals, experience shall be rounded to nearest complete number.</i>	1 to 3 Years	10	30
		More Than 3 Years and Up to 6 Years	20	
		More Than 6 Years	30	

- The evaluation procedures to be adopted in the bidding process will be at the sole discretion of the Company and the Company is not liable to disclose the evaluation report or reasoning to the bidder.
- The Company reserves the right not to accept any bid or to accept or reject a particular bid at its sole discretion without assigning any reason whatsoever.
- The cost of bidding and submission of RFP documents is entirely the responsibility of bidders, regardless of the conduct or outcome of the process.
- Technical evaluation of the eligible bidder will be carried out, based on the details submitted by the Bidder in the technical bid and the presentation made by them before committee.

Evaluation of Financial Bid:

- The price bid will be submitted basis the format in the GEM portal **on per deal basis**. (Consultancy Service charges shall be Charges for MTM Valuation per Deal basis inclusive of all charges and applicable taxes.) Details for filling the financial bid may be referred in Annexure K.
- Further, it may be noted that no other expenses shall be paid to the bidder. Bid may be submitted **on per deal valuation**

basis.

- Each option contract under structured derivative products/ POS/ CIRS/ Forward/ IRS will be counted as one deal.

Submission of Tender:

The tender shall be submitted online in two parts at the same time, viz Part I – Prequalification criteria & Technical Bid and Part II - Financial Bid.

1. All the pages of bid documents being submitted must be signed by the authorized signatory and sequentially numbered by the bidder irrespective of nature of content of the documents before uploading.
2. The offers submitted by Fax / E-mail shall not be considered. No correspondence will be entertained in this matter.
3. Quoting the price bid in technical bid will make the entire bid null and void.

Evaluation Process:

The evaluation shall be carried out as follows: -

1. Technical bids will be evaluated for bidders who meet the eligibility criteria.
2. Technical bids will be evaluated as per technical criteria and minimum qualifying marks will be **70 out of 100.**
3. Financial bid of only the Bidders who have **cleared the technical evaluation and obtained minimum 70 out of 100 marks will be opened on GeM and evaluated.**
4. **Tie Breaker** - When multiple sellers are ranked as L1, the selection shall be on the basis of GeM system which uses a Random Algorithm (or "Run L1 Selection") to select a winner.

VIII. Instructions To Bidders- General Terms and Conditions: -

The general terms and conditions applicable in regard to submission of bid/offer for award of contract by IREDA are as follows: -

1. The Bid shall be submitted online:
 - a. Part-I Eligibility and Technical Bid criteria
 - b. Part II i.e., Financial Bid criteria
2. All the pages of bid being submitted must be signed and sequentially numbered by the bidder irrespective of nature of content of the documents **before uploading**.
3. The offers submitted by Fax / E-mail shall not be considered. No correspondence will be entertained in this matter.
4. The Individuals/ partnership firms/LLP/Companies/ proprietorship firm should declare whether any Director/partner of the firm/ Individual has any relation with any **employee** of IREDA and if so, give the name and the relationship, and also whether any of them has a relationship within the meaning of Sub-Section (77) of Section 2 of the **Companies Act 2013**, with any of the Directors of IREDA, and also with the Statutory Auditors of IREDA, if so give details as per **Annexure H**.
5. All rates and amount shall be quoted strictly as per the online price bid format in Indian rupees only. TDS will be deducted as per the applicable rules.
6. Prior to detailed evaluation, IREDA will determine the substantial responsiveness of each Bid with reference to the Bidding documents. A substantial responsive bid is one which conforms to all the terms and conditions of the bidding documents without material deviation. The Owner's determination of bids responsiveness will be based on the contents of the bid itself. A bid determined as not substantially responsive will be rejected by IREDA and may not subsequently be made responsive by the bidder by correction of the non-conformity.
7. Bids shall remain valid for a period of 180 days after the date of Bid opening. IREDA holds the right to reject a bid valid for a period shorter than 180 days as non-responsive, without any correspondence.
8. IREDA does not bind itself just to accept the lowest financial bid and reserves the right to accept or reject any or all bids without assigning any reason.
9. The bidder shall complete the proposal sheets and all the pages of the bid shall have initials of the person or persons signing the bid as a token acceptance of all the terms & conditions of this tender.
10. Sub-letting is not allowed. If any such matter comes to IREDA's notice, the contract will be cancelled.
11. IREDA will evaluate and compare the bids based on the information asked in the tender document vis-à-vis documents submitted by the bidder.
12. IREDA reserves the right, to accept any bid (not necessarily the bid having lowest bid prices) or to reject any or all bids or to cancel / withdraw the invitation to bid or to annul the bidding process at any time prior to Award of Contract, without assigning any reason for such decision. Such decision by IREDA shall not be subject to question by any Bidder and the Owner shall bear no liability whatsoever consequent upon such a decision nor shall he have any obligation to inform the affected Bidder or Bidders of the grounds for the Owner's action.
13. IREDA can withdraw / terminate the contract at any time with one-month notice period on account of any reason or in case the services are not found satisfactory.
14. The tender submitted by tenderers shall become the property of IREDA and participating agency/firm shall have no right /obligation to ask for return the same.
15. If a tenderer deliberately/knowingly provides wrong /false information/credentials/ documents in support,

IREDA reserves the right to terminate/rescind the contract at any stage and to take any other action as may be deemed fit.

16. All participative bidders may take care for timely on-line bid(s) submission to avoid last hour rush or any technical error / issue, resulting in failure of bid submission due to some reason. The control of the system is on GEM Portal and hence, for any technical issue they may contact Customer Care of GEM Portal. All participative bidders are requested to sort out any technical issues, issues on account of valid digital signature or any other issues which lead to delay/on submission of the bid documents well in time.
17. In case, due to any reason, the opening date & time being a holiday or due to organization unexpected requirement, the last date of opening will be notified for which the participating bidders have to refer IREDA's website and GEM Portal.
18. Any dispute(s) or difference(s) arising out of or in connection with the Contract shall, to the extent possible, be settled amicably between the parties.
19. Decision of Competent Authority, IREDA shall be final & binding on both the parties in respect of all matters of dispute arising out of this tender.
20. **Jurisdiction:** The Contract with the selected Bidder shall be governed in accordance with the Laws of India and will be subject to the exclusive jurisdiction of Courts in Delhi (with the exclusion of all other Courts).
21. Notification of Award of Contract will be made in writing by registered post / speed post or by hand to the successful bidder by IREDA. The notification of award shall constitute the formation of contract.
22. **The Integrity Pact**, as per **Annexure M**, essentially envisages that the prospective Bidders/ successful Bidders and the IREDA, committing that persons/ officials of both sides not to resort to any corrupt practices in any aspect/ stage of the contract and shall act as per the ethical conduct & behavior. All the prospective Bidders/ successful Bidders will be deemed to commit themselves to such an Integrity Pact with IREDA, would be considered competent/ eligible to participate in the bidding process. This condition should not be breached by both the parties in any stage of Bidding/ Contract. Furthermore, each Bidder must declare any past violations of this code of integrity, including but not limited to any instance of debarment by any procuring entity, or any similar infringement with any entity in any jurisdiction during the preceding three years. **Non-disclosure of such information** shall also constitute a violation of this code of integrity.

23. Resolution of Disputes:

- The bidder and the Company shall endeavor their best to amicably settle all disputes arising out of or in connection with the Contract in the following manner: The Party raising a dispute shall address to the other Party a notice requesting an amicable settlement of the dispute within seven (7) days of receipt of the notice. The matter shall then be resolved between the Company and the bidder through negotiation and the agreed course of action documented within a further period of fifteen (15) days.
- In case any dispute between the Parties, does not settle by negotiation in the manner as mentioned above, the same may be resolved exclusively by arbitration and such dispute may be submitted by either party for arbitration within twenty (20) days of the failure of negotiations.
- Arbitration shall be in accordance with the provisions of The Arbitration and Conciliation Act, 1996 or any amendments, statutory modification or re-enactment thereof. The appointment of arbitrators shall be in accordance with section 11 of the Arbitration and Conciliation Act, 1996. However, in case of disagreement for appointment of Arbitrators/ Sole Arbitrator, the parties may approach the competent court of law for adjudication of the disputes.
- The place of Arbitration shall be New Delhi. The arbitration proceedings shall be conducted in English language. Subject to the above, the courts/Tribunals at Delhi shall have exclusive jurisdiction in respect of all matters connected with this Proposal/Contract. The arbitration award shall be final, conclusive and

binding upon the Parties and judgment may be entered thereon upon the application of either party to a court of competent jurisdiction. Each Party shall bear the cost of arbitration equally, including the fees and expenses of the arbitrators unless the award otherwise provides.

- The bidder shall not be entitled to suspend the Service/s or the completion of the job, pending resolution of any dispute between the Parties and shall continue to render the Service/s in accordance with the provisions of this Proposal/Contract notwithstanding the existence of any dispute between the Parties or the subsistence of any arbitration or other proceedings.

24. Liquidated Damages:

- Due to negligent act of the Bidder, if IREDA suffers losses, and incurs damages, the quantification of which may be difficult, the total amount of liquidated damages under this engagement shall be payable to IREDA and the Bidder shall agree to pay such liquidated damages as defined by IREDA at the time of **finalization of the work order**. The payment of liquidated damages shall be without prejudice to legal action as per appropriate law.
- The amount of liquidated damages for delay by the Bidder under the Work Order shall not exceed 10 % (Ten Percent) of the **total value of the Work Order**.
- The liquidated damages for delay by the Bidder shall be applicable if there is a delay in providing service as per the delivery schedule.
- If the deliverables as per the Scope of Work are not submitted as per schedule, the Bidder shall be liable to pay **0.5% (Point Five Percent)** of the **total value of the Work Order** for delay of each week or part thereof.
- If the deliverables are not acceptable to IREDA, and defects are not rectified to the satisfaction of IREDA within 4 (four) days of the receipt of the notice, the Bidder shall be liable for Liquidated Damages for an amount equal to 0.5% (Point Five Percent) of the **total value of the Work Order** for every week or part thereof for the delay.

25. Risk and Cost:

After the award of the contract, if the selected Bidder does not perform satisfactorily or delays execution of the contract, the Company reserves the right to get the balance contract executed by another party of its choice by giving one month's notice for the same. In such an event, the Bidder is bound to make good the additional expenditure, which the Company may have to incur for the execution of the balance of the contract.

26. Force Majeure:

The parties shall not be Liable for default or non-performance of the obligations under the contract, if such default or non-performance of the obligations under this contract is caused by any reason or circumstances or occurrences beyond the control of the parties, i.e. Force Majeure. For the purpose of this clause, "Force Majeure" shall mean an event beyond the control of the parties, due to or as a result of or caused by acts of God, wars, earth quake, fire, Epidemic, Pandemic and Lockdown events not foreseeable but does not include any fault or negligence or carelessness on the part of the parties, resulting in such a situation.

In the event of any such intervening Force Majeure, each party shall notify the other party in writing of such circumstances and the cause thereof immediately within five calendar days. Unless otherwise directed by the other party, the party pleading Force Majeure shall continue to perform/render/discharge other obligations as far as they can reasonably be attended/fulfilled and shall seek all reasonable alternative means for performance affected by the Event of Force Majeure.

In such a case, the time for performance shall be extended by a period(s) not less than the duration of such delay. If the duration of delay continues beyond a period of three months, the parties shall hold consultations with each other in an endeavor to find a solution to the problem.

Notwithstanding above, the decision of the Company to continue or cancel the contract shall be final and binding on the Bidder.

27. Termination of Assignment:

The Company reserves the right to cancel the contract of the contracted Bidder on the following circumstances:

1. The selected Bidder commits a breach of any of the terms and conditions of the RFP.
2. In case it is found during the course of the transaction or at any time before award of the assignment or after its execution and during the period of subsistence or after the period thereof, that one or more of the terms and conditions laid down in this Request for Proposal (RFP) has not been met by the bidder, or the bidder has made material misrepresentation or has given any materially incorrect or false information, the bidder shall be disqualified forthwith if not yet appointed as the Valuer. Also, if the selected bidder has already been appointed as the Valuer, as the case may be, the same shall, notwithstanding anything to the contrary contained in this RFP, be liable to be terminated, by communication in writing by the Company to the selected bidder without the Company being liable in any manner whatsoever to the selected bidder. This action will be without prejudice to any other right or remedy that may be available to the Company under the bidding documents, or otherwise. However, before terminating the assignment, a show cause notice stating why its appointment should not be terminated would be issued giving it an opportunity to explain its position.
3. The selected bidder goes into Liquidation voluntarily or otherwise.
4. Valid license of the selected bidder is revoked at any point of time during the process of bid or after being selected.
5. If it is detected at any stage that any form of canvassing/ Lobbying/exercise of influence/cartelization etc. has been put to use by the Bidder.
6. If the Bidder fails to deliver / undertake any or all of the services within the time period(s) specified in the contract / work schedule/request, or any extension thereof granted by the Company at its sole discretion.
7. The Company at any time considers that the services of the selected bidder are in any manner deficient and /or are not being performed to the satisfaction of the Company in terms of scope of work as set out herein or in the engagement Letter or in any agreement that may be executed with successful bidder.
8. If the Bidder fails to perform any other obligation(s) under the contract RFP
9. Bidder fails to comply with the regulatory/statutory obligations, guidelines and its license is cancelled during the validity of Agreement.
10. The Company reserves the right to recover any dues payable by the selected bidder from the pending bills and/or invoking Performance Bank Guarantee, if any, under this contract or any other contract /order.
11. The Company reserves its right to terminate the contract without assigning any reasons whatsoever by giving a **prior notice of 30 days**. However, the bidder will not have right to terminate this contract.
12. IREDA does not bind itself to accept the lowest or any tender and reserves the right to accept or reject, in full or in part, any or all offers without assigning any reason whatsoever in the event of one or more of the following situations, that are not occasioned due to reasons solely and directly attributable to IREDA alone.
13. IREDA also has the right to re-issue the tender without the bidders having the right to object to such re-issue.
14. In case of award/work cancellation, any payments made by IREDA to the Bidder would necessarily have to be returned to IREDA.

Further the Bidder would also be required to compensate IREDA for any direct loss incurred by IREDA due to the cancellation of the contract. This is after repaying the original amount paid.

28. Performance of the contract:

The selected Bidder shall agree to deliver and perform the services in accordance with the timelines specified by the Company as well as Agreements to be executed in future. The delivery of the services shall be seamless and irrespective of intervening Public Holidays.

The Company shall reserve the right to terminate the contract in case the selected bidder fail to complete the work as per the specification and satisfaction of the Company.

29. Performance Bank Guarantee (PBG):

- Successful bidder must submit the PBG @ 3% of contract value of the said bidder in the format prescribed by the GeM Portal within 15 working days' time from the issuance of the work order.
- The successful bidder, to whom the work is awarded, shall furnish a Performance Bank Guarantee which shall be in the form of a Bank Guarantee from any ***Scheduled Bank as per RBI or Public Sector Bank. Performance*** Bank Guarantee in favour of the Company shall be in the **prescribed format as per Gem Portal**, within 15 days of signing the Contract.
- The guarantee amount shall be equal to **three percent (3% of the total contract value (which is including all expenses, taxes, duties and levies, if any but excluding goods and service tax, education cess and secondary & higher education cess))** and it shall guarantee the faithful performance of the Contract in accordance with the terms and conditions specified in these documents and specifications.
- In the event of non-performance of obligation or failure to meet terms of this Tender or subsequent agreement the Company shall be entitled to invoke the performance guarantee without notice or right of demur to the Bidder.
- The Company reserves the right to recover any dues payable by the selected Bidder from any amount outstanding to the credit of the selected Bidder, including the pending bills and/or invoking Performance Bank Guarantee, if any, under this contract.
- The **validity period of the guarantee should be up to 1 year** from the date of completion of the engagement.
- No interest shall be payable by the company on the above stated guarantee amount.

30. **The other terms and conditions not mentioned above, shall be governed by updated General terms and conditions on GeM.**

31. Since it is a service category, it is construed as MII Compliance by Indian firms/Consultant. However, Buyer may seek supporting Documents as per applicable MII compliance Order, if required. Hence, it is advised that Bidders may please adhere as per MII Orders and participate in Bidding process. Initially, Buyer shall construe as MII compliance, if participated & submitted their BID quote.

IX. Confidentiality

The Bidder should treat the details of the documents as secret and confidential. The Successful Bidder shall be required to execute separate Non-Disclosure Agreement (NDA) and Integrity Pact with IREDA. The format of NDA and Integrity Pact will be provided by IREDA to the successful bidder.

X. Annexures

Annexure A

Bid Offer Form (without Price)

(On Bidder's Letter Head and to be signed by Authorized Signatory)

Date:_____

To
Deputy General Manager (F&A)
Indian Renewable Energy Development Agency Limited,
7th Floor, Block-2, NBCC Office Complex,
East Kidwai Nagar, New Delhi – 110024

Subject: RFP for Engagement of Valuation Agency

Dear Sir / Madam,

We have carefully gone through the Terms & Conditions contained in the above referred RFP and latest General terms and conditions and thoroughly examined the detailed Scope of Work laid down by your Company in the RFP. We declare that all the content, specifications, terms & conditions of this RFP are acceptable.

We acknowledge having received the following addenda / corrigenda to the RFP document.

Addendum No. / Corrigendum No.	Dated

While submitting this bid, we certify that:

1. I/We are an Indian Citizen / Entity.
2. I/We have not been removed / dismissed from service (previous employment) earlier.
3. I/We have not been blacklisted by any Government Department / Public Sector Undertaking / Banks / Autonomous Bodies / RBI / Statutory Bodies in India at the time of submission of bid.
4. I/We have not been convicted of any offence and sentenced to a term of imprisonment.
5. I/We have not been found guilty of misconduct in professional capacity. No disciplinary proceeding is pending against the valuer.
6. I/We are not an undischarged insolvent.
7. I/We have not been convicted of an offence connected with any proceeding under the Income Tax Act 1961, Wealth Tax Act 1957 or Gift Tax Act 1958.
8. I/We possess a PAN Card number / GST number, as applicable.
9. I/We are not engaged in any other employment with any other entity (in case of individual bidder).
10. The prices in the bid have not been disclosed and will not be disclosed to any other bidder of this RFP.

11. I/We have not induced nor attempted to induce any other bidder to submit or not submit a bid for restricting competition.
12. I/We agree that the rates / quotes, terms and conditions furnished in this RFP are for IREDA.
13. I/We will unconditionally adhere to INTEGRITY PACT

We understand that

1. You are not bound to accept the lowest or any bid received by you, and you may reject all or any bid.
2. If our Bid for the above job is accepted, we undertake to enter into and execute at our cost, when called upon by you to do so, a contract in the prescribed form. Unless and until a formal contract is prepared and executed, this bid together with your written acceptance thereof shall constitute a binding contract between us.
3. If our bid is accepted, we are to be jointly and severally responsible for the due performance of the contract.

If our offer is accepted, we undertake, to start the assignment under the scope immediately after receipt of your order. We have taken note of **liquidated damages clause in the RFP** and agree to abide by the same. We also note that IREDA reserves the right to cancel the order and order cancellation clause as per terms and condition would be applicable. We understand that for delays not attributable to us or on account of uncontrollable circumstances, penalties will not be levied and that the decision of IREDA will be final and binding on us.

We agree to abide by this offer till 180 days from the last date stipulated by IREDA for submission of bid, and our offer shall remain binding upon us and may be accepted by IREDA any time before the expiry of that period.

Until a formal contract is prepared and executed with the selected bidder, this offer will be binding on us. We also certify that the information/data/particulars furnished in our bid are factually correct. We also accept that in the event of any information / data / particulars are found to be incorrect, IREDA will have the right to disqualify /blacklist us.

We undertake to comply with the terms and conditions of the bid document. We understand that IREDA may reject any or all of the offers without assigning any reason whatsoever.

Yours sincerely,

(Signature of the Bidder)

Name:

Designation:

Date:

Address:

Bidder's Information***(On Bidder's Letter Head and to be signed by Authorized Signatory)*****Subject:** RFP for Engagement of Valuation Agency

Details of the Bidder		
1	Name of the Bidder	
2	Year of Incorporation	
3	Address of the Bidder	
4	Status of the Bidder Entity (Public Ltd/ Pvt. Ltd / LLP/ Partnership / Prop / Individual)	
5	Telephone nos./ Mobile	
6	Email	
7	Name of the Authorized Signatory Designation Address Mobile Number Email Address	
8	Permanent Account Number (PAN)	
9	GST registration number	
10	Udyog Aadhaar Memorandum (UAM No.)	
11	Total No. of Employees	
12	PAN India Presence (Name & address of cities where having own branches/ offices with address)	
13	Place of Head / Registered office and Main/ Corporate Office	
14	Address of office in Delhi NCR	
15	Name & Designation of the contact person to whom all references shall be made regarding this RFP	
16	Signed RFP needs to be provided	
17	Documentary evidence of the M&A with complete disclosure along with the approval of the applicable regulatory authorities wherever applicable, signed by the authorised signatory need to be provided.	

(Signature of the Bidder)

Name:

Designation:

Date:

Address:

Declaration for Acceptance of RFP Terms and Conditions

(On Bidder's Letter Head and to be signed by Authorized Signatory)

Date:_____

To
Deputy General Manager (F&A)
Indian Renewable Energy Development Agency Limited,
7th Floor, Block-2, NBCC Office Complex,
East Kidwai Nagar, New Delhi – 110024

Subject: RFP for Engagement of Valuation Agency

Dear Sir / Madam,

I have carefully gone through the **Terms & Conditions** contained in the above-mentioned RFP document. I declare that all the provisions of this RFP are acceptable to my company. I further certify that I am an authorized signatory of my company and am, therefore, competent to make this declaration.

I have carefully gone through the **Scope of Work** contained in the above referred RFP document. I declare that all the provisions of this RFP are acceptable to my company. I further certify that I am an authorized signatory of my company/firm/LLP and am, therefore, competent to make this declaration.

I have read the clause of Circular No. F.No.6/18/2019-PPD dated 23rd July 2020 issued by Public Procurement Division, Department of Expenditure, Ministry of Finance regarding restrictions on procurement from a bidder of a country which shares a land border with India. I certify that I am not from such a country or, if from such a country, has been registered with the Competent Authority. I hereby certify that I fulfill all requirements in this regard as mentioned in the said Circular and am eligible to be considered for procurement on GeM.

(Signature of the Bidder)

Name:

Designation:

Date:

Address:

Registration Details

(On Bidder's Letter Head and to be signed by Authorized Signatory)

Date:_____

To
Deputy General Manager (F&A)
Indian Renewable Energy Development Agency Limited,
7th Floor, Block-2, NBCC Office Complex,
East Kidwai Nagar, New Delhi – 110024

Subject: RFP for Engagement of Valuation Agency

Dear Sir / Madam,

Following are the registration details:

S. No.	Particulars	Registration No.	Valid From/Effective Date
1	Certificate of Registration with IBBI		
2	Certificate of Membership with RVO		
3	Certificate of Practice with RVO		

I/We further certify that above certificates are valid as on date of submission of the bid. Further, I/We are a member of any RVO as on date of submission of bid.

Yours faithfully,

(Signature of the Bidder)

Name:

Designation:

Date:

Address:

Team Details

(On Bidder's Letter Head and to be signed by Authorized Signatory)

Date:_____

To
Deputy General Manager (F&A)
Indian Renewable Energy Development Agency Limited,
7th Floor, Block-2, NBCC Office Complex,
East Kidwai Nagar, New Delhi – 110024

Subject: RFP for Engagement of Valuation Agency

Dear Sir / Madam,

Following are the details of the professionals who will lead the assignment of IREDA:

Professional Qualification	RV Membership no.	Name of the Companies	Total Years of experience	Type of relevant valuation assignments handled

Yours faithfully,

(Signature of the Bidder)

Name:

Designation:

Date:

Address:

Annexure F

Team Details

(On Bidder's Letter Head and to be signed by Authorized Signatory)

Date: _____

To
Deputy General Manager (F&A)
Indian Renewable Energy Development Agency Limited,
7th Floor, Block-2, NBCC Office Complex,
East Kidwai Nagar, New Delhi – 110024

Subject: RFP for Engagement of Valuation Agency

Dear Sir / Madam,

Following are the details of the professionals who will be engaged in the assignment of IREDA:

S. No.	Name	Designation	Professional qualification	Years of total experience	Years of relevant experience as per TOR	Type of relevant valuation assignments handled	Name of the organization worked with
1							
2							
3							
	Average Experience						

Yours faithfully,

(Signature of the Bidder)

Name:

Designation:

Date:

Address:

Annexure G

Turnover Details

Date:_____

To
Deputy General Manager (F&A)
Indian Renewable Energy Development Agency Limited,
7th Floor, Block-2, NBCC Office Complex,
East Kidwai Nagar, New Delhi – 110024

Subject: RFP for Engagement of Valuation Agency

Dear Sir / Madam,

Following are the details of Annual Turnover

S. No.	Financial Year	Annual Turnover in Rs lakhs
1	2023-24	
2	2024-25	
3	2025-26	
	Average (Sum of Annual Turnover / 3)	

Yours faithfully,

(Signature of the Bidder)

Name:

Designation:

Date:

Address:

Declaration for Relation in IREDA

(On Bidder's Letter Head and to be signed by Authorized Signatory)

Date:_____

To
Deputy General Manager (F&A)
Indian Renewable Energy Development Agency Limited,
7th Floor, Block-2, NBCC Office Complex,
East Kidwai Nagar, New Delhi – 110024

Subject: RFP for Engagement of Valuation Agency

Dear Sir / Madam,

I/We hereby submit the following information pertaining to relation/relatives of Proprietor/
Partner(s)/ Director(s) employed in IREDA

Write any one as applicable:

1. The Proprietor, Partner(s), Director(s)* of our Company/Firm DO NOT have any relation or relatives employed in IREDA

OR

2. The Proprietor, Partner(s), or Director(s) of our Company / Firm have relation / relatives employed in IREDA and their particulars are as below:
 - (i)
 - (ii)

Yours faithfully,

(Signature of the Bidder)

Name:

Designation:

Date:

Address:

Declaration for Engagement Letter / agreement

(On Bidder's Letter Head and to be signed by Authorized Signatory)

Date:_____

To
Deputy General Manager (F&A)
Indian Renewable Energy Development Agency Limited,
7th Floor, Block-2, NBCC Office Complex,
East Kidwai Nagar, New Delhi – 110024

Subject: RFP for Engagement of Valuation Agency

Dear Sir / Madam,

Following are the details of Engagement Letter / agreement:

S. No.	Name of the company	Type of Work	Period of Engagement	Status (Completed / Substantially completed)	Documents Furnished (Certified by authorised signatory - Copy of Engagement Letter / agreement & completion certificates/ CA certified receipt of payments)
1					

Undertaking:

1. Bidder has **at least 7 years of experience** of providing valuation services for valuation *of “Securities or Financial Assets”*.
2. During the last 7 years (from 01.04.2019 onwards), the Bidder has completed or substantially completed at least seven assignments related to valuation *of “Securities or Financial Assets”*.
3. Bidder confirms that out of the above assignments at least two (2) assignments are related to valuation *of Derivatives as per Scope of work which have been* completed or substantially completed.

Note –

1. Substantially completed means - where payments due must have been received.
2. In case an engagement letter/workorder is for a period more than 1 year, it will be counted as 1 (one) engagement for the purpose of evaluation.

Yours faithfully,

(Signature of the Bidder)

Name:

Designation:

Date:

Address:

Annexure J

Declaration for Engagement Letter / agreement

(On Bidder's Letter Head and to be signed by Authorized Signatory)

Date:_____

To
Deputy General Manager (F&A)
Indian Renewable Energy Development Agency Limited,
7th Floor, Block-2, NBCC Office Complex,
East Kidwai Nagar, New Delhi – 110024

Subject: RFP for Engagement of Valuation Agency

Dear Sir / Madam,

Following are the details of Engagement Letter / agreement for valuation of Derivatives as per Scope of work:

S. No.	Name of the company	Type of Entity (PSU / NBFCs (of assets size of > ₹ 1000 Cr) / Scheduled Commercial Banks / Listed Companies)	Period of Engagement	Status (Completed / Substantiall y completed)	Following Documents to be Furnished Certified by authorised signatory – - Copy of Engagement Letter / agreement - Completion certificates/ CA certified receipt of payments
1					
2					
3					

Note –

1. Substantially completed means - where payments due must have been received.
2. In case an engagement letter/workorder is for a period more than 1 year, it will be counted as 1 (one) engagement for the purpose of evaluation.

Yours faithfully,

(Signature of the Bidder)

Name:

Designation:

Date:

Address:

Declaration for Engagement Letter / agreement**(On Bidder's Letter Head and to be signed by Authorized Signatory)**

Date:_____

To
 Deputy General Manager (F&A)
 Indian Renewable Energy Development Agency Limited,
 7th Floor, Block-2, NBCC Office Complex,
 East Kidwai Nagar, New Delhi – 110024

Subject: RFP for Engagement of Valuation Agency

Dear Sir / Madam,

Item Description	Fee in figures to be entered by the bidder	Fee Quoted (In Words)
Fee for acting as VBRLMs to QIP. Bid has to be quoted as an inclusive bid and the Company shall not pay any expense other than those mentioned below.	TO BE QUOTED ON GeM PORTAL ONLY The price bid will be submitted basis the format in the GEM portal on per deal basis . (Consultancy Service charges shall be Charges for MTM Valuation per Deal basis inclusive of all charges and applicable taxes.)	TO BE QUOTED ON GeM PORTAL ONLY The price bid will be submitted basis the format in the GEM portal on per deal basis . (Consultancy Service charges shall be Charges for MTM Valuation per Deal basis inclusive of all charges and applicable taxes.)

- Each option contract under structured derivative products/ POS/ CIRS/ Forward/ IRS will be counted as one deal.
- Indicative number of deals which may be considered for the purpose of estimating the tender value for a period of 2 years are **704 (Seven Hundred Four)**. Actual deals may vary.

We.....Bidder NOTE and UNDERTAKE that:

- 1) Price bid is to be quoted on GeM portal only. Submission of price bid anywhere else in the document except in the BoQ format provided at the GEM portal (in the technical bid or if filled in format of the financial bid) will make the entire bid null and void.
- 2) In case of any, mismatch in fee quoted in the figures and the fee quoted in words, then fee quoted in words will be taken as correct for all purposes.
- 3) Bid is inclusive of GST. Any additional taxes and duties liability arising from changes in taxes and duties rate or the imposition of new taxes and duties by the Central or State Governments shall be the responsibility of the Company.

- 4) However, in the event of a delay in delivery caused by the bidder, and during such delay, there is a change in the applicable tax rate, any additional tax burden resulting from such change shall be borne by the bidder and not by the Company. In case of any reduction such benefit shall be passed on to the Company.
- 5) The Company will not be liable to pay any other amount/ other expenses like travel, tour and accommodation etc., except the agreed fees.
- 6) The Bidder firm/company shall take into account all conditions and difficulties that may be encountered during the course of assignment, while quoting the rate.

Yours faithfully,

(Signature of the Bidder)

Name:

Designation:

Date:

Address:

Annexure L

Local Content Certificate

[NOTE: The certificate should be certified by Statutory auditor or cost auditor of the company (in the case of companies) or from a practicing cost accountant or practicing chartered accountant (in respect of suppliers other than companies) giving the percentage of local content as per “Make in India” (MII) policy of Govt. of India (amended time to time)]

Date: _____

To
Deputy General Manager (F&A)
Indian Renewable Energy Development Agency Limited,
7th Floor, Block-2, NBCC Office Complex,
East Kidwai Nagar, New Delhi – 110024

Subject: RFP for Engagement of Valuation Agency

Dear Sir / Madam,

It is certified that the local content / value addition in the offered item(s) under VFJ GeM Bid No. _____ Dt. / / as per “Make In India” policy of Government of India (amended time to time) is as follows: -

1	Percentage (%) of local content / value addition made in India	
2	Name of the place where local value addition is made	

Yours faithfully,

(Signature of the Bidder)

Name:

Designation:

Date:

Address:

INTEGRITY PACT

Between

Indian Renewable Energy Development Agency Limited

having its Registered Office at Core-4A, East Court, 1st Floor, India Habitat Centre, Lodhi Road, New Delhi – 110003 and its Corporate Office at 3rd Floor, August Kranti Bhawan, Bhikaiji Cama Place, New Delhi – 110066.

hereinafter referred to as

“IREDA”

and

[Insert the name of the Sole Bidder / Lead Partner of Joint Venture]

Having its Registered Office at

[Insert full Address]

hereinafter referred to as

“The Bidder / Contractor”

Preamble

IREDA intends to award, under laid-down organizational procedures, contract(s) for

[Insert the name of the package]

(Signature) _____
(For & on behalf of IREDA)

(Signature) _____
(For & on behalf of Bidder / Partner(s) of
Joint Venture / Contractor)

IREDA values full compliance with all relevant laws and regulations and the principles of economical use of resources, and of fairness and transparency in its relations with its Bidders / Contactors.

In order to achieve these goals, IREDA and the above-named Bidder / Contactor enter into this agreement call 'Integrity Pact' which will form a part of the bid.

It is hereby agreed by and between the parties as under: -

Section I – Commitments of IREDA

- (1) IREDA commits itself to take all measures necessary to prevent corruption and to observe the following principles:
 - a) No employee of IREDA, personally or through family members, will in connection with the tender, or the execution of the contract, demand, take a promise for or accept, for him / herself or third person, any material or other benefit which he / she is not legally entitled to.
 - b) IREDA will, during the tender process treat all Bidder(s) with equity and fairness. IREDA will in particular, before and during the tender process, provide to all Bidder(s) the same information and will not provide to any Bidder(s) confidential / additional information through which the Bidder(s) could obtain an advantage in relation to the tender process of the contract execution.
 - c) IREDA will exclude from evaluation of Bids its such employee(s) who has any personnel interest in the Companies / Agencies participating in the Bidding / Tendering process.
- (2) If Chairman and Managing Director obtains information on the conduct of any employee of IREDA which is a criminal offence under the relevant Anti-Corruption Laws of India, or if there be a substantive suspicion in this regard, he/she will inform its Chief Vigilance Officer and in addition can initiate disciplinary actions under its Rules.

Section-II – Commitments of the Bidder / Contractor

- (1) The Bidder / Contractor commits himself to take all measures necessary to prevent corruption. He commits himself to observe the following principles during his

(Signature) _____
(For & on behalf of IREDA)

(Signature) _____
(For & on behalf of Bidder / Partner(s) of
Joint Venture / Contractor)

participation in the tender process and during the contract execution:

- a) The Bidder / contractor will not, directly or through any other person or firm, offer, promise or give to IREDA, or to any of IREDA's employees involved in the tender process or the execution of the contract or to any third person any material or other benefit which he / she is not legally entitled to, in order to obtain in exchange an advantage during the tender process or the execution of the contract.
 - b) The Bidder / Contractor will not enter into any illegal agreement or understanding, whether formal or informal with other Bidders / Contractors. This applies in particular to prices, specifications, certifications, subsidiary contracts, submission or non-submission of bids or actions to restrict competitiveness or to introduce cartelization in the bidding process.
 - c) The Bidder / contractor will not commit any criminal offence under the relevant Anti-Corruption Laws of India; further, the Bidder / Contractor will not use for illegitimate purposes or for purposes of restrictive competition or personal gain, or pass on to others, any information provided by IREDA as part of the business relationship, regarding plans, technical proposals and business details, including information contained or transmitted electronically.
 - d) The Bidder / Contractor of foreign origin shall disclose the name and address of Agents / representatives in India, if any, involved directly or indirectly in the Bidding. Similarly, the Bidder / Contractor of Indian Nationality shall furnish the name and address of the foreign principles, if any, involved directly or indirectly in the Bidding.
 - e) The Bidder / Contractor will, when presenting his bid, disclose any and all payments he has made, or committed to or intends to make to agents, brokers or any other intermediaries in connection with the award of the contract and / or with the execution of the contract.
 - f) The Bidder / Contractor will not misrepresent facts or furnish false / forged documents / information in order to influence the bidding process or the execution of the contract to the detriment of IREDA.
 - g) A person signing IP shall not approach the Courts while representing the matters to IEM and he/she will wait their decision in the matter.
- (2) The Bidder / Contractor will not instigate third persons to commit offences outlined above or be an accessory to such offences.

(Signature) _____
(For & on behalf of IREDA)

(Signature) _____
(For & on behalf of Bidder / Partner(s) of
Joint Venture / Contractor)

Section-III – Disqualification from tender process and exclusion from future contracts

- (1) If the Bidder, before contract award, has committed a serious transgression through a violation of Section II or in any other form such as to put his reliability or credibility as Bidder into question, IREDA may disqualify the Bidder from the tender process or terminate the contract, if already signed, for such reason.
- (2) If the Bidder / Contractor has committed a serious transgression through a violation of Section II such as to put his reliability or credibility into question, IREDA may after following due procedures also exclude the Bidder / Contractor from future contract award processes. The imposition and duration of the exclusion will be determined by the severity of the transgression. The severity will be determined by the circumstances of the case, in particular the number of transgressions, the position of the transgressors within the company hierarchy of the Bidder / Contractor and the amount of the damage. The exclusion will be imposed for a minimum of 12 months and maximum of 3 years.
- (3) If the Bidder / Contractor can prove that he has restored / recouped the damage caused by him and has installed a suitable corruption prevention system, IREDA may revoke the exclusion prematurely.

Section-IV – Liability for violation of Integrity Pact

- (1) If IREDA has disqualified the Bidder from the Tender process prior to the award under Section III, IREDA may forfeit the Bid Guarantee under the Bid.
- (2) If IREDA has terminated the contract under Section III, IREDA may forfeit the Contract Performance Guarantee of this contract besides resorting to other remedies under the Contract.

Section-V – Previous Transgression

- (1) The Bidder shall declare in his Bid that no previous transgressions occurred in the last 3 years with any other Public Sector Undertaking or Government Department that could justify his exclusion from the tender process.
- (2) If the Bidder makes incorrect statement on this subject, he can be disqualified from the tender process or the contract, if already awarded, can be terminated for such reason.

(Signature) _____
(For & on behalf of IREDA)

(Signature) _____
(For & on behalf of Bidder / Partner(s) of
Joint Venture / Contractor)

Section-VI – Equal treatment to all Bidders / Contractors

- (1) IREDA will enter into agreements with identical conditions as this one with all Bidders.
- (2) IREDA will disqualify from the tender process any bidder who does not sign this Pact or violate its provisions.

Section-VII – Punitive Action against violating Bidders / Contractors

If IREDA obtains knowledge of conduct of a Bidder or a Contractor or his subcontractor or of an employee or a representative or an associate of a Bidder or Contractor or his Subcontractor which constitutes corruption, or if IREDA has substantive suspicion in this regard, IREDA will inform the Chief Vigilance Officer (CVO).

(*)Section-VIII – Independent External Monitor/ Monitors

- (1) IREDA has appointed a panel of Independent External Monitors (IEMs) for this Pact with the approval of Central Vigilance Commission (CVC), Government of India, out of which one of the IEMs has been indicated in the NIT / IFB.
- (2) The IEM is to review independently and objectively, whether and to what extent the parties comply with the obligations under this agreement. He has right of access to all Project documentation. The IEM may examine any complain received by him and submit a report to Chairman & Managing Director, IREDA at the earliest. He may also submit a report directly to the CVO and the CVC, in case of suspicion of serious irregularities attracting the provisions of the PC Act. However, for ensuring the desired transparency and objectivity in dealing with the complaints arising out of any tendering process, the matter shall be referred to the full panel of IEMs, who would examine the records, conduct the investigations and submit report to Chairman & Managing Director, IREDA, giving joint findings.
- (3) The IEM is not subject to instructions by the representatives of the parties and performs his functions neutrally and independently. He reports to the Chairman & Managing Director, IREDA.

(Signature) _____
(For & on behalf of IREDA)

(Signature) _____
(For & on behalf of Bidder / Partner(s) of
Joint Venture / Contractor)

- (4) The Bidder(s) / Contractor(s) accepts that the IEM has the right to access without restriction to all documentation of IREDA related to this contract including that provided by the Contractor / Bidder. The Bidder / Contractor will also grant the IEM, upon his request and demonstration of a valid interest, unrestricted and unconditional access to his documentation. The same is applicable to Subcontractors. The IEM is under contractual obligation to treat the information and documents of the Bidder(s) / Contractor(s) / Subcontractor(s) with confidentiality.
- (5) IREDA will provide to the IEM information as sought by him which could have an impact on the contractual relations between IREDA and the Bidder / Contractor related to this Contract.
- (6) As soon as the IEM notices, or believes to notice, a violation of this agreement, he will so inform the Chairman & Managing Director, IREDA and request the Chairman & Managing Director, IREDA to discontinue or take corrective action, or to take other relevant action. The IEM can in this regard submit non-binding recommendations. Beyond this, the IEM has no right to demand from the parties that they act in a specific manner, refrain from action or tolerate action. However, the IEM shall give an opportunity to IREDA and the Bidder / Contractor, as deemed fit, to present its case before making its recommendations to IREDA.
- (7) The IEM will submit a written report to the Chairman & Managing Director, IREDA within 8 to 10 weeks from the date of reference or intimation to him by IREDA and, should the occasion arise, submit proposals for correcting problematic situations.
- (8) If the IEM has reported to the Chairman & Managing Director, IREDA, a substantiated suspicion if an offence under relevant Anti-Corruption Laws of India, and the Chairman & Managing Director, IREDA has not, within the reasonable time taken visible action to proceed against such offence or reported it to the CVO, the Monitor may also transmit this information directly to the CVC, Government of India.
- (9) The word '**IEM**' would include both singular and plural.

() This section shall be application for only those packages wherein the IEMs have been identified in Section-I: Invitation for Bids and / or Clause ITB 9.3 in Section –III: Bid Data Sheets of Conditions of Contract, Volume-I of the Bidding Documents.*

(Signature) _____
(For & on behalf of IREDA)

(Signature) _____
(For & on behalf of Bidder / Partner(s) of
Joint Venture / Contractor)

Section-IX –Pact Duration

This Pact begins when both parties have legally signed it. It expires for the Contractor after the closure of the contract and for all other Bidder's six month after the contract has been awarded.

Section-X – Other Provisions

- (1) This agreement is subject to Indian Law. Place of performance and jurisdiction is the establishment of IREDA. The Arbitration clause provided in the main tender document / contract shall not be applicable for any issue / dispute arising under Integrity Pact.
- (2) Changes and supplements as well as termination notices need to be made in writing.
- (3) If the Contractor is a partnership firm or a consortium or Joint Venture, this agreement must be signed by all partners, consortium members and Joint Venture partners. In case of sub-contracting, the Principal Contractor shall take responsibility of the adoption of IP by the sub-contractor.
- (4) Nothing in this agreement shall affect the rights of the parties available under the General Conditions of Contract (GCC) and Special Conditions of Contract (SCC).
- (5) Views expressed or suggestions / submissions made by the parties and recommendations of the CVO/IEM[#] in respect of the violation of this agreement, shall not be relied on or introduced as evidence in the arbitral or judicial proceedings (arising out of the arbitral proceedings) by the parties in connection with the disputes / differences arising out of the subject contract.

[#] CVO shall be applicable for packages wherein IEM are not identified in Section IFB / BDS for Condition of Contract, Volume-I. IEM shall be applicable for packages wherein IEM are identified in Section IFB/BDS of Condition of Contract, Volume-I.

(Signature) _____
(For & on behalf of IREDA)

(Signature) _____
(For & on behalf of Bidder / Partner(s) of
Joint Venture / Contractor)

- (6) Should one or several provisions of this agreement turn out to be invalid, the remainder of this agreement remains valid. In this case, the parties will strive to come to an agreement to their original intentions.

(Signature) _____
(For & on behalf of IREDA)

(Signature) _____
**(For & on behalf of Bidder / Partner(s)
 of Joint Venture / Contractor)**

(Office Seal)

(Office Seal)

Name: _____

Name: _____

Designation: _____

Designation: _____

Witness1: _____

Witness1: _____

(Name & Address) _____

(Name & Address) _____

Witness1: _____

Witness1: _____

(Name & Address) _____

(Name & Address) _____
